H.B. 7, 2025.]

TOURISM BILL, 2025

EXPLANATORY MEMORANDUM

This Bill seeks to establish a Zimbabwe Tourism Authority that is responsible for the regulation for the tourism and hospitality industry, and the marketing of destination Zimbabwe. In more detail, the individual clauses of the Bill provide as follows:

Clause 1

This clause sets out the Bill's short title.

Clause 2

This clause deals with the definitions that are used throughout the Bill.

Clause 3

This clause sets out the objectives of the Bill.

Clause 4

This clause sets out the establishment of the Authority, which regulates the tourism and hospitality industry. The Authority shall be a body corporate capable of suing and being sued in its name and do all other functions that body corporates do.

Clause 5

This clause outlines the functions of the Authority.

Clause 6

This clause sets out the composition of the Board, which shall oversee the operations of the Authority.

Clause 7

This clause sets out the appointment of the chief executive officer of the Authority and outlines his or her functions and terms of office.

Clause 8

This clause outlines any other type of reports that may be submitted to the Minister, in addition to the annual reports which the Authority submits in terms of the Public Finance Management Act.

Clause 9

This clause outlines that the Minister may give directions of a policy nature to the Board in the exercise of its functions.

Clause 10

This clause outlines that before the beginning of every financial year, the Authority shall prepare annual programmes and budgets for that year for the Minister's approval.

Clause 11

This clause outlines that the Minister shall cause the Authority to be paid such monies from the Zimbabwe Tourism Fund to meet the Authority's expenditure in line with their programmes and budgets for that financial year as approved by the Minister.

Clause 12

This clause sets out the funding mechanism for the Authority.

Clause 13

This clause outlines that upon the advice of the Minister responsible for finance and with the approval of the Minister, the Authority may invest any such monies that may not be immediately required.

Clause 14–16

These clauses outlines the accounts of the Authority, audit of the accounts and the powers of the auditors.

Clause 17

This clause sets out a holding company for holding assets on behalf of the government. The holding company is registered under the name Mosi Oa Tunya Development Company (Private) Limited, and the Minister is empowered to register any other companies as subsidiaries to the holding company.

Clause 18

This clause sets out the establishment of the Zimbabwe Tourism Fund which shall be responsible for the development of the tourism and hospitality industry.

Clause 19

This clause outlines the source of funding for the Fund.

Clause 20

This clause sets out how the monies of the Fund shall be applied to meet the expenses of the Authority, and to promote the development of the tourism and hospitality industry.

Clause 21

This clause outlines the financial year of the Fund.

Clause 22

This clause sets out that the Minister after consultation with the Authority, may designate any premise that offer tourism services to be a designated tourist facility.

Clause 23

This clause makes it mandatory that for any designated facility to operate it must first be registered and graded, failure of which attracts a penalty.

Clause 24–26

These clauses sets out that the Authority shall establish and keep registers for registered and designated facilities, the application processes for persons conducting or intending to conduct or operate designated tourist facilities, and the registration and grading of the tourist facilities.

Clause 27

This clause sets out that the chief executive officer shall issues out certificates to operators of designated tourist facilities specifying that the facility has been registered and the grade to which it has been graded.

Clause 28

This clause states that the Authority shall publish a list of designated tourist facilities that have registered and their grades once a year or at other intervals.

Clause 29

This clause states that any operator who intends to make any alterations to their facility should notify the Authority beforehand and submit any relevant required materials.

Clause 30

This clause states that if a facility fails to comply with the registration requirements, the Authority, after notifying the operator, may cancel its registration.

Clause 31

This clause sets out that the Authority may regrade a designated facility, or that the operator upon submitting the required information, may apply for regrading of their facility.

Clause 32–35

This Part sets out for the registration and compliance of platform host and hosts of online accommodation facilities. Online accommodation facility hosts should be registered and licensed with the Authority. Those already operating such facilities have ninety days from the date of commencement of the Act to regularise and register.

Clause 36

This clause outlines that any person who owns, conducts or operates a designated tourist facility, or who provides or assist in providing any service to a designated tourist facility should hold a licence, failure of which attracts a penalty.

Clause 37

This clause outlines that there shall be licensing officers employed by the Authority empowered to carry out any functions as may be assigned.

Clause 38–40

These clauses outlines the application process for a licence, the form and duration of the licence and instances where a licence may be cancelled.

Clause 41

This clause sets out that every operator of a designated tourist facility must keep a register of clients who use their services, and must produce such registers on demand by an designated officer, police officer or immigration officer.

Clause 42

This clause sets out the appeal process for any person who may be aggrieved by any decision made in terms of the Bill.

Clause 43

This clause sets out that the Minister may designate an employee of the Authority or any licensing officer as a designated officer, and shall be provided with a certificate.

Clause 44

This clause sets out the powers that are given to the chief executive officer, licensing officer and designated officers in course of their duty to enter premises whenever it is reasonably necessary for the maintenance of standards in or at any designated tourist facility.

Clause 45

This clause sets that any information acquired in the course of duty should never be disclosed to any person, except where it is required to do so by any law or by an order of court.

Clause 46

This clause outlines that the Minister may make regulations that provides for levies to be paid by tourist facilities. All amounts that are remitted or collected by way of levies shall be paid into the Zimbabwe Tourism Fund.

Clause 47

This clause provides for the civil penalty orders.

Clause 48

This clause outlines that the Authority shall require from the operators statistics regarding tourists, excursionists and, designated tourist facilities.

Clause 49

This clause provides that all tourism policies, programs, and projects must incorporate the principles of sustainable development.

Clause 50

This clause outlines mainstreaming gender equality, disability inclusion, and indigenous rights in tourism.

Clause 51

This clause provides for the regulation-making by the Minister.

Clause 52

This clause provides for the general offences and penalties that are provided for in the Bill.

Clause 53

This clause sets out that any document kept in terms of this Bill or purporting to be signed by the chief executive officer shall be taken at face value to be accepted as evidence.

Clause 54

This clause provides for the repeal and savings of the Tourism Act.

TOURISM BILL, 2025

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BILL

To provide for the establishment of the Zimbabwe Tourism Authority and to provide for its functions and management; to provide for the appointment and functions of a board of the Authority in line with corporate governance principles; to establish a Zimbabwe Tourism Fund; to provide for the appointment of a Chief executive officer of the Authority, licensing officers and other officers; to provide for the designation, registration and grading of tourist facilities and for the licensing of persons who provide services connected with tourism; to provide for the imposition and collection of levies in respect of designated tourist facilities; to provide for the regulation of online accommodation platforms; to repeal the Tourism Act [*Chapter 14:20*]; and to provide for matters connected with or incidental to the foregoing.

ENACTED by the Parliament and the President of Zimbabwe.

PART I

PRELIMINARY

1 Short title

(1) This Act may be cited as the Tourism Act, 2025.

(2) This Act shall come into operation on a date to be fixed by the President by statutory instrument.

H.B. 7, 2025.]

Printed by the Government Printer, Harare

2 Interpretation

In this Act—

"Authority" means the Zimbabwe Tourism Authority established in terms of section 4;

"Board" means the Board of the Authority constituted in terms of section 6;

"Chief executive officer" means the Chief Executive Officer of the Authority appointed in terms of section 7;

"committee" means a committee of the Board;

"designated officer" means a person designated as such in terms of section 43(1);

"designated tourist facility" means any service, premises, place or thing which the Minister has declared to be a designated tourist facility in terms of section 23;

"development company" means Mosi Oa Tunya Development Company (Private) Limited;

"excursionist" means a person whose usual place of residence is in Zimbabwe and who visits or travels to any part of Zimbabwe for the purpose of a day trip;

"levy" means a levy prescribed in terms of section 46 and includes any surcharge prescribed in terms of that section;

"licence" means a licence issued in terms of this Act;

"licensing officer" means a licensing officer referred to in section 37(1);

"member" means a member of the Board, including the chairperson and deputy chairperson of the Board;

"Minister" means the Minister responsible for tourism and hospitality or any other Minister to whom the President may, from time to time, assign the administration of this Act;

"operator", in relation to a tourist facility, means any person who conducts or operates the tourist facility or who is responsible for its management;

"registered" means registered in terms of this Act;

"registered tourist facility" means a designated tourist facility which has been registered;

"repealed Act" means the Tourism Act [*Chapter 14:20*] repealed in terms of section 54 of this Act;

"sustainable tourism" means tourism that takes full account of its current and future economic, social, and environmental impacts;

"tourist" means a person travelling away from their place of usual residence and staying in the visited place in Zimbabwe, whose journey is for any one or more of the following purposes—

(a) a holiday;

(b) recreation;

(c) health;

(d) study;

(e) religion;

(f) sport;

(g) business;

(h) meeting;

(i) visiting friends or relatives;

(j) work that is not remunerated from within Zimbabwe; and

(k) any other purpose;

"tourism enterprise" means any business, company, partnership, cooperative, or individual engaged in the provision of goods or services primarily for tourists, whether for profit or not, and registered with the applicable laws;

"tourist facility" means any establishment, infrastructure, service, or amenity that is primarily intended for use by tourists, whether for accommodation, recreation, entertainment, cultural enrichment, or other tourism-related purposes;

"tourist industry" includes all businesses, enterprises and activities which provide tourist facilities, including any such businesses, enterprises and activities carried on by the State, a statutory body or a local authority;

"Zimbabwe Tourism Fund" means the Zimbabwe Tourism Fund established in terms of section 18(1).

3 Objects of Act

The objectives of this Act are—

(a) to promote tourism as a key sector of national economic development;

(b) to ensure high standards of quality, safety, and environmental sustainability;

(c) to promote community based and heritage tourism;

(d) to market the country as a competitive tourism destination.

PART II

ZIMBABWE TOURISM AUTHORITY

4 Establishment of Zimbabwe Tourism Authority

The Zimbabwe Tourism Authority established by section 3 of the repealed Act shall continue in force and shall be known as the Zimbabwe Tourism Authority and shall be deemed to have been established in terms of this section.

5 Functions of Authority

(1) The functions of the Authority shall be—

(a) to license and regulate tourism enterprises;

(b) to promote Zimbabwe as a destination for tourists, and to promote the tourist industry in overseas, regional and domestic markets;

(c) to develop marketing skills and initiatives within the tourist industry;

(d) to promote high standards in the tourist industry through the establishment of standards, training and human resource development;

(e) to register and grade designated tourist facilities;

(f) to formulate a national tourism development plan together with the Council and the development company or any of its subsidiaries;

(g) to undertake planning for the tourist industry, including the conduct of market research and the development of a tourism database;

(h) to promote awareness in Zimbabwe of the benefits of tourism;

(i) to provide consultancy and advisory services in relation to tourism;

(j) to investigate and make recommendations to the Minister on any matter affecting the tourist industry and the administration of this Act;

(k) on its own initiative or at the request of the Minister, to carry out any function that may be conferred or imposed on the Authority by or under this Act or any other enactment.

(2) For the better exercise of its functions the Authority shall have power, subject to this Act, to do or cause to be done, either by itself or through its agents, all or any of the things specified in the First Schedule, either absolutely or conditionally and either solely or jointly with others.

6 Board of Authority

(1) Subject to this Act, the operations of the Authority shall be controlled by a board to be known as the Zimbabwe Tourism Authority Board.

(2) The Board shall consist of not fewer than six members and not more than twelve members (at least half of them shall be women) appointed by the Minister, after consultation with the President.

(3) Members shall be appointed for their skills, knowledge or expertise in administration, management and the fields relevant to the operation and management of the Authority as follows—

(a) two shall be persons holding a recognised qualification or demonstrable knowledge in tourism and hospitality;

(b) persons recognised for their qualification, ability or experience in the following—

(i) economics or business administration;

(ii) marketing;

(iii) finance or accounting;

(iv) conservation; and

(v) human resources management;

(c) one shall be a legal practitioner registered in terms of the Legal Practitioners Act [*Chapter 27:07*];

(d) one shall be an accountant registered in terms of the Public Accountants and Auditor's Act [*Chapter 27:12*];

(e) one shall be a representative of the Ministry responsible for tourism and hospitality; and

(f) the chief executive officer shall be an *ex-officio* member without the right to vote.

(4) Amongst the members appointed in terms of subsection (3), the Minister shall appoint—

(a) one member as chairperson; and

(b) one member as vice-chairperson who must be of opposite gender to the chairperson.

(5) In appointing members of the Board, the Minister shall endeavour to ensure that the Board is fairly representative of Zimbabwe's regions.

(6) The Second Schedule shall apply to the terms and conditions of office of the Board.

7 Appointment and functions of Chief Executive Officer of Authority

(1) The Board shall with the approval of the President appoint a chief executive officer.

(2) The chief executive officer shall hold office for such period not exceeding a five-year term and may be eligible for reappointment for only one further such term.

(3) The appointment of the chief executive officer shall terminate if he or she would be required in terms of paragraph 3(1)(a) and (b) of the Second Schedule to vacate office.

(4) The chief executive officer shall subject to the Board's directions—

(a) supervise and manage the Authority's staff, activities, funds and property and perform such other functions on behalf of the Board as the Board may assign to him or her; and

(b) be responsible for the registration and grading of designated tourist facilities by the Authority.

(5) The chief executive officer may delegate to any senior officer of the Authority, as he or she considers appropriate, the exercise of any powers which the chief executive officer is authorised to exercise in terms of this Act.

(6) Any assignment of functions in terms of subsection (5) may be made generally or specifically and subject to such conditions, restrictions, reservations and exceptions as the Board may determine.

8 Reports of Authority

(1) In addition to any annual report which the Authority may be required to submit to the Minister in terms of the Public Finance Management Act [*Chapter 22:19*], the Board—

(a) shall submit to the Minister such other reports as the Minister may require; and

(b) may submit to the Minister such other reports as the Authority considers desirable;

in regard to the operations, undertakings and activities of the Authority.

(2) The Board shall give the Minister all information relating to the operations, undertakings and activities of the Authority that the Minister may at any time require.

9 Minister may give policy directions to Board

(1) Subject to subsection (2), the Minister may give the Board such general directions relating to the policy the Board is to observe in the exercise of its functions as the Minister considers to be necessary in the national interest, which policy directions must—

(a) not be inconsistent with any provision of this Act; and

(b) be issued in good faith, apply prospectively and not retrospectively, and be of general applicability; and

(c) clearly delimit the scope of their application and must otherwise not be vague or ambiguous in their terms; and

(d) clearly express the national interest at stake; and

(e) must be clear (whether expressly or by necessary implication) that they apply or are in force for a fixed or indefinite period, or that they expire on the happening of any event.

(2) Before giving the Board a direction in terms of subsection (1), the Minister shall inform the Board, in writing, of the proposed direction and the Board shall, within thirty days or such further period as the Minister may allow, submit to the Minister, in writing, its views on the proposal.

(3) The Board shall take all necessary steps to comply with any directions in subsection (1).

(4) Where any direction has been given to it in terms of subsection (1), the Board shall ensure that the direction and any views the Board has expressed on it in terms of subsection (2) are set out in the Board's annual report.

PART III

FINANCIAL PROVISIONS RELATING TO AUTHORITY

10 Annual programmes and budgets of Authority

(1) On or before such date before the beginning of every financial year as the Minister may direct, the Board shall prepare and submit to the Minister for his or her approval—

(a) a programme of the projects and activities which the Board intends the Authority to undertake during that financial year; and

(b) a budget showing the expenditure which the Board proposes that the Authority will incur in respect of that financial year.

(2) During any financial year, the Board may submit to the Minister for his or her approval a supplementary budget relating to expenditure which—

(a) was not, for good reason, provided for in the annual budget; or

(b) was inadequately provided for in the annual budget due to unforeseen circumstances.

(3) A supplementary budget approved by the Minister shall be deemed to form part of the annual budget of the Authority for the financial year to which it relates.

(4) The Board shall furnish the Minister with such additional information in regard to any budget submitted under subsection (1) or (2) as the Minister may require.

(5) In approving any budget under this section, the Minister may impose such terms and conditions as he or she considers to be necessary or desirable.

(6) With the approval of the Minister, the Board may vary a budget approved under this section:

Provided that no variation may be made which has the effect of increasing the total amount of expenditure provided for in the budget.

(7) The Minister may withdraw, vary or modify his or her approval of any budget under this section or any of the terms and conditions of such approval.

11 Grants to Authority from Zimbabwe Tourism Fund

(1) At the beginning of each financial year, the Minister shall cause the Authority to be paid sufficient moneys from the Zimbabwe Tourism Fund to meet the expenditure which the Authority proposes to incur during that financial year, as shown in the budget approved by the Minister in terms of section 10 for that financial year.

(2) Where the Minister has approved a supplementary budget in terms of section 10(2), he or she shall cause the Authority to be paid sufficient moneys from the Zimbabwe Tourism Fund to meet the Authority's proposed expenditure as shown in that supplementary budget.

12 Funds of Authority

The funds of the Authority shall consist of—

(a) moneys paid to the Authority from the Zimbabwe Tourism Fund in terms of section 11; and

(b) fees; and

(c) any moneys that the Authority may obtain, with the approval of the Minister and the Minister responsible for finance, by way of donations:

Provided that donations made in respect of bursaries for persons undergoing courses relating to the tourist industry may be accepted by the Board without such approval; and

(d) any other moneys that may vest in or accrue to the Authority, whether in terms of this Act or otherwise.

13 Investment of moneys not immediately required by Authority

Moneys not immediately required by the Authority may be invested in such manner as the Minister, acting on the advice of the Minister responsible for finance, may approve.

14 Accounts of Authority

(1) The Board shall ensure that proper accounts and other records relating to such accounts are kept in respect of all the Authority's activities, funds and property, including such particular accounts and records as the Minister may direct.

(2) Within three months after the end of the financial year, the Board shall prepare and submit to the Minister a statement of accounts in respect of that financial year or in respect of such other period as the Minister may direct.

15 Audit of Authority's accounts

Subject to the Public Finance Management Act [*Chapter 22:19*], the accounts of the Authority shall be audited annually by—

(a) the Auditor-General; or

(b) a person who is registered as a public auditor in the of the Public Accountants and Auditors Act [*Chapter 27:12*], appointed by the Auditor-General;

and the Auditor-General or the public auditor, as the case may be, shall submit the audit report to the Minister responsible for corporate governance, the Minister responsible for finance, the Minister and the Board.

16 Powers of auditors

(1) An auditor referred to in section 15 shall be entitled at all reasonable times to require to be produced to him or her all accounts and other records relating to such accounts which the Authority or its agents keep and to require from any member of the Board or employee or agent of the Authority such information and explanation as in the auditor's opinion are necessary for the purpose of his or her audit.

(2) Any member of the Board or employee or agent of the Authority who fails without just cause to comply with a requirement of an auditor in terms of subsection (1) shall be guilty of an offence and liable to a fine not exceeding level four or to imprisonment for a period not exceeding three months or to both such fine and such imprisonment.

PART IV

DEVELOPMENT COMPANY

17 Government controlled tourist facilities

(1) In this Part—

"Government controlled tourist facilities" means the Mosi Oa Tunya Development Company (Private) Limited, any of its subsidiaries or any entities referred to in subsection (4).

(2) Subject to this Part, the Minister is empowered to take such steps as are necessary under the Companies Act [*Chapter 24:03*] to secure the formation of a company limited by shares called the Mosi Oa Tunya Development Company (Private) Limited, the principal objects of which are to develop, manage, and promote tourism investment.

(3) The Mosi Oa Tunya Development Company (Private) Limited, a wholly owned company of the Government of Zimbabwe, incorporated in terms of the Companies Act [*Chapter 14:03*] in 2012, shall be deemed to have been formed in accordance with this section from the date of its incorporation.

(4) The Mosi Oa Tunya Development Company (Private) Limited shall be the holding company for all the government holding tourism facilities and other tourist-related entities, which shall be incorporated as subsidiaries of the company.

(5) Subject to subsection (4), if the Minister deems it expedient or desirable to incorporate any entity operating as a tourist facility independently of Mosi Oa Tunya Development Company, the Minister is empowered to take such steps as are necessary.

PART V

ZIMBABWE TOURISM FUND

18 Establishment and Object of Zimbabwe Tourism Fund

(1) There is hereby established a fund to be known as the Zimbabwe Tourism Fund.

(2) The Fund shall—

(a) be vested in the Minister as the trustee; and

(b) be administered on behalf of the trustee by a Council appointed by the Minister, which shall consist of—

(i) a Ministry representative;

(ii) a representative of the Authority;

(iii) a representative from the Ministry responsible for finance;

(iv) four representatives nominated from the tourism and hospitality industry;

(v) a representative from the office of the Attorney General;

(vi) a representative from Mosi Oa Tunya Development Company (Private) Limited or any of its subsidiaries.

(3) Subject to this Act, the objects of the Zimbabwe Tourism Fund shall—

(a) be the development and promotion of the tourism and hospitality industry;

(b) the collection and disbursement of revenue in accordance with the national tourism development plan; and

(c) the development of tourism infrastructure.

19 Composition of Zimbabwe Tourism Fund

The Zimbabwe Tourism Fund shall consist of—

(a) any moneys that may be payable to the Zimbabwe Tourism Fund from moneys appropriated for the purpose by Act of Parliament; and

(b) levies; and

(c) any moneys that the Zimbabwe Tourism Fund may obtain, with the approval of the Minister and the Minister responsible for finance, by way of donations, loans or other financial assistance; and

(d) any other moneys that may vest in or accrue to the Zimbabwe Tourism Fund, whether in terms of this Act or otherwise;

which sums shall be public funds and are to be administered as such in terms of the Public Finance Management Act [*Chapter 22:19*].

20 Application of Zimbabwe Tourist Fund

Moneys in the Zimbabwe Tourism Fund shall be applied to the following purposes—

(a) meeting the expenses of the Authority:

Provided that no moneys shall be applied towards any expense that is not provided for in a budget approved in terms of section 10; and

(b) any other purpose which the Minister, after consultation with the Authority, considers will promote the orderly development of the tourism and hospitality industry.

21 Financial year of Zimbabwe Tourism Fund

The financial year of the Zimbabwe Tourism Fund shall be the period of twelve months ending on the 31st December each year.

PART VI

DESIGNATED TOURIST FACILITIES

22 Designation of tourist facilities

The Minister, after consultation with the Authority, may by statutory instrument declare that—

(a) any service whatsoever provided for tourists; or

(b) any premises or place in or on which a service referred to in paragraph (a) is provided, or

(c) any premises, place or thing whatsoever which, in the Minister's opinion, affords an amenity to tourists;

shall be a designated tourist facility.

PART VII

REGISTRATION AND GRADING OF DESIGNATED TOURIST FACILITIES

23 Designated tourist facilities to be registered and graded

(1) Where, in terms of regulations made in section 51, any designated tourist facility is required to be registered and graded, no person shall conduct or operate that designated tourist facility unless it is registered and graded, as the case may be.

(2) The Authority shall have the power to shut down all unregistered facilities offering tourism services.

(3) Any person who contravenes subsection (1) shall be guilty of an offence and liable to a fine not exceeding level 12 or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.

24 Authority to establish and keep appropriate registers

Before or as soon as possible after the publication of any regulations made in terms of section 51 requiring the registration of any class of designated tourist facilities, the Authority shall establish and keep a register for the registration of that class of designated tourist facilities in a form approved by the Minister.

25 Applications for registration and grading of designated tourist facilities

(1) Any person who is conducting or operating or intends to conduct or operate a designated tourist facility which is required to be registered or graded shall apply to the Authority in the form and manner prescribed for the registration or grading, as the case may be, of that designated tourist facility.

(2) Any person who intends to construct a tourist facility shall first submit their building plans for approval to the Authority.

(3) An application in terms of subsection (1) shall be accompanied by such fee, building plans, documents and other information or particulars relating to the designated tourist facility as may be prescribed.

26 Registration and grading of designated tourist facilities

(1) Subject to subsections (3) and (4), on receipt of an application in terms of section 25 which relates—

(a) to the registration of an existing designated tourist facility, the Chief Executive Officer shall, if he or she is of the opinion that the prescribed requirements for registration—

(i) have been complied with, register the designated tourist facility by entering in the appropriate register such particulars as may be prescribed; or

(ii) have not been complied with, refuse to register the designated tourist facility:

Provided that, if the Chief Executive Officer considers that special circumstances exist which make it desirable to do so, he or she may, with the approval of the Board, register a designated tourist facility in respect of which the prescribed requirements for registration have not been complied with;

(b) to the registration of any service, premises, place or thing which is proposed to be conducted or operated as a designated tourist facility, the Chief Executive Officer shall, if he or she is of the opinion that the prescribed requirements for registration—

(i) will be complied with, register the proposed designated tourist facility by entering in the appropriate register such particulars as may be prescribed; or

(ii) have not been complied with, refuse to register the proposed designated tourist facility:

Provided that—

(a) he or she may postpone the matter for further consideration for such period or periods as he or she may fix; or

(b) if the Chief Executive Officer considers that special circumstances exist which make it desirable to do so, he or she may, with the approval of the Board, register a proposed designated tourist facility in respect of which the prescribed requirements for registration have not been complied with.

(2) Subject to subsection (3), as soon as reasonably possible after receipt of an application for the grading of a designated tourist facility, the Chief Executive Officer shall, subject to regulations made in terms of section 51, cause it to be graded.

(3) Before registering or grading a designated tourist facility, the Chief Executive Officer—

(a) shall cause the designated tourist facility to be inspected; and

(b) may call for a report from the Chief Health Officer or a medical officer appointed under the Public Health Act [*Chapter 15:09*]; and

(c) may make or cause to be made such further investigations in regard thereto as he or she considers necessary.

(4) The Chief Executive Officer shall not register a designated tourist facility in any register if it is already registered in another register unless, at the same time as he or she registers the facility, he or she cancels its earlier registration.

27 Certificates of registration or grade of designated tourist facilities

(1) On the registration or grading of a designated tourist facility, the Chief executive officer shall issue to the operator of the designated tourist facility a certificate in the prescribed form which shall specify that the designated tourist facility is registered or the grade into which it has been graded, as the case may be:

Provided that a single certificate may, where appropriate, specify both that a designated tourist facility has been registered and its grade.

(2) If any designated tourist facility ceases to be registered or graded or if its registration or grade is altered, the person who was the operator of the designated

tourist facility immediately before it ceased to be registered or graded or its registration or grade was altered, as the case may be, shall forthwith return to the Authority the appropriate certificate referred to in subsection (1).

(3) Any person who contravenes subsection (2) shall be guilty of an offence and liable to a fine not exceeding level 6 or to imprisonment for a period not exceeding three months or to both such fine and such imprisonment.

28 Publication of list of registered tourist facilities

The Authority shall publish, once a year or at such other intervals as the Minister may direct, a list of designated tourist facilities that have been registered, together with such information as the Minister thinks proper in relation to the grades and standards of such facilities, the charges made therein or therefor and any other matter of interest to tourists.

29 Notification of alterations to registered tourist facilities

(1) Any operator of a registered tourist facility who intends to make any addition or alteration to the facility which is likely to affect—

(a) the accommodation or any service provided to tourists; or

(b) the registration or grading of the facility;

shall notify the Authority in writing before commencing any such addition or alteration, and must provide the Authority with such fee, building plans, documents and other information or particulars relating to the addition or alteration as may be prescribed.

(2) Within thirty days after the completion of any addition or alteration referred to in subsection (1), or within such longer period as the Chief Executive Officer may allow, the operator of the registered tourist facility concerned shall notify the Authority of such completion.

(3) Any person who contravenes subsection (1) or (2) shall be guilty of an offence and liable to a fine not exceeding level 3 or to imprisonment for a period not exceeding one month or to both such fine and such imprisonment.

30 Cancellation of registration of designated tourist facilities

(1) Where the Authority considers that there has been a failure in respect of a registered tourist facility to comply with any of the prescribed requirements for registration, the Authority may give notice to the operator of the tourist facility that unless the requirement concerned is complied with within such reasonable period as the Authority shall specify, the Authority may cancel the tourist facility's registration.

(2) The operator of a registered tourist facility in respect of which a notice has been given in terms of subsection (1) may, before the expiry of the period specified by the Authority, make written representations to the Authority in regard to the proposed cancellation of the tourist facility's registration.

(3) If, upon the expiry of the period specified in a notice given in terms of subsection (1), the Authority considers that the requirement concerned has not been complied with and that no good reason has been shown as to why the tourist facility concerned should remain registered, the Authority may direct the Chief executive officer to cancel the registration of the tourist facility, and the Chief executive officer shall forthwith comply with the direction and give notice of the cancellation to the tourist facility's operator.

(4) The Chief Executive Officer shall give notice in the *Gazette* of the cancellation of a tourist facility's registration in terms of this section.

31 Regrading of designated tourist facilities

(1) The Authority may at any time, after giving the operator of a designated tourist facility a reasonable opportunity of making written representations in the matter, direct the Chief Executive Officer to regrade the designated tourist facility if, in the Authority's opinion, reasonable and sufficient grounds exist for doing so.

(2) The operator of a designated tourist facility which has been graded may, subject to such conditions and accompanied by such fee as may be prescribed, apply to the Authority in the prescribed form and manner for the regrading of the designated tourist facility.

(3) The Authority shall consider any application made in terms of subsection (2) and shall give such decision and take such action thereon as it considers appropriate.

PART VIII

ONLINE ACCOMMODATION PLATFORM

32 Interpretation in Part VII

(1) In this Part—

"accommodation booking platform" means a digital platform whose business it is to—

(a) enable persons having accommodation for letting (in this Part called "the host"), whether privately or on a commercial basis, to list or register with the operator of the platform (in this Part called "the platform host"); and

(b) introduce for the payment of a fee, commission or other compensation—

(i) tourists to hosts; or

(ii) local residents to hosts who are registered or required to be registered as designated tourist facilities;

"family type accommodation" in relation to a facility, means a housing unit consisting of—

(a) at least one room and not more than eight bedrooms for the accommodation of not more than eight platform guests; and

(b) at least one bathroom and one toilet; and

(c) at least one kitchen and one dining room; and

(d) unless such facility is provided in a separate building, a room or rooms for use by the management and staff of the facility for administrative purposes that is clearly separated or distinct from the part of the housing unit used for the accommodation of the platform guests; and

(e) ventilation that is satisfactory to the Chief Health Officer;

"dormitory type accommodation" in relation to a facility, bears the same meaning as that for family type accommodation except that instead of paragraph (a) of that definition the place where the guests sleep consists of a hall (or two halls in the case where guests of both sexes are accommodated) such that each guest in the dormitory shall have a sleeping space of not less than 3 metres by 2 metres, or where bunks are provided, each bunk shall occupy a space of 3 metres by 2 metres and not have more than two levels.

33 Registration and licensing

(1) All hosts must register with the Authority, in the prescribed manner, before listing a property on an accommodation booking platform.

(2) Every accommodation booking platform shall ensure that hosts using their services are registered and licensed with the Authority.

(3) Licences shall be valid for one year and subject to renewal upon inspection and review.

34 Host responsibilities

(1) The host shall—

(a) maintain records of all transactions;

(b) submit quarterly reports to the Authority;

(c) ensure compliance with local zoning, health and safety regulations; and

(d) cooperate with inspections and investigations.

(2) The Authority may prescribe data formats and reporting standards.

35 Compliance period

All existing accommodation booking platforms and hosts shall comply with provisions of this Act within ninety days from the date of commencement.

PART IX

LICENSING OF OWNERS AND OPERATORS OF DESIGNATED TOURIST FACILITIES AND OTHER PERSONS

36 Persons required to be licensed

(1) Where, in terms of regulations made in terms of section 51, any person who owns, conducts or operates a designated tourist facility, or who provides or assists in providing any service which is a designated tourist facility, is required to hold a licence, no person shall own or operate such a designated tourist facility, or provide or assist in providing such a service, as the case may be, unless he or she holds such a licence.

(2) Any person who contravenes subsection (1) shall be guilty of an offence and liable to a fine not exceeding level six or to imprisonment for a period not exceeding six month or to both such fine and such imprisonment.

37 Licensing officers

(1) There shall be such number of licensing officers as may be necessary for the purposes of this Act, who shall be under the employment of the Authority.

(2) Subject to this Act and any general directions that the Minister may give, a licensing officer shall—

(a) license all persons that are required to be licensed under this Act; and

(b) do such other things as are required to be done by or under this Act and any other enactment.

38 Application for licences

(1) Applications for licences shall be made to a licensing officer in the prescribed form and manner and shall be accompanied by the prescribed fee, if any.

(2) On receipt of an application referred to in subsection (1), a licensing officer shall, if he or she is satisfied that the applicant—

(a) has complied with the prescribed requirements and additionally, or alternatively, possesses the prescribed qualifications for possession of the licence concerned, issue a licence to the applicant; or

(b) has not complied with the prescribed requirements or does not possess the prescribed qualifications for possession of the license concerned, refuse to issue a licence to the applicant.

39 Form and duration of licenses

Licences shall be in the prescribed form and valid for such period as may be prescribed.

40 Cancellation of licences

(1) If at any time a licensing officer is satisfied that the holder of a licence—

(a) is no longer qualified to hold the licence; or

(b) has been guilty of a contravention of this Act or conduct which renders it, him or her unsuitable to hold the licence; or

(c) has failed to comply with any term or condition of the licence;

the licensing officer may, by notice in writing to the holder, cancel the licence:

Provided that, before cancelling a licence, the licensing officer shall give the holder a reasonable opportunity to make representations in the matter.

(2) If any licence is cancelled, the holder thereof shall forthwith return the licence to a licensing officer.

(3) Any person who contravenes subsection (2) shall be guilty of an offence and liable to a fine not exceeding level 3 or to imprisonment for a period not exceeding one month or to both such fine and such imprisonment.

PART X

GENERAL

41 Designated tourist facilities to keep registers of clients

Every operator of such designated tourist facilities, shall—

(a) keep a register in the prescribed form in which the operator shall record such particulars as may be prescribed of every person who uses the services of the operator's designated tourist facility; and

(b) preserve the register referred to in paragraph (a) for such period as may be prescribed; and

(c) on demand, produce the register referred to in paragraph (a) to any designated officer, police officer or immigration officer.

42 Appeals

(1) If any person is aggrieved by a decision of the Board or the Chief executive officer with regard to—

(a) an application for the registration of a designated tourist facility or for the renewal of its registration; or

(b) the cancellation or alteration of the registration of a designated tourist facility; or

(c) the grading of a designated tourist facility;

he or she may, within twenty-eight days after being notified of the decision, appeal in writing to the Minister, submitting with his or her appeal such fee as may be prescribed.

(2) If any person is aggrieved by a decision of a licensing officer with regard to—

(a) an application for a licence or for the renewal of a licence; or

(b) the cancellation or alteration of a licence;

he or she may, within twenty-eight days after being notified of the decision, appeal in writing to the Minister, submitting with his or her appeal such fee as may be prescribed.

(3) For the purpose of determining an appeal noted in terms of subsection (1) or (2), the Minister may require the Authority, the Chief executive officer or the licensing officer, as the case may be, to furnish him or her with the reasons for the decision that is the subject of the appeal and a copy of any evidence upon which the reasons are based.

(4) The Minister, after due and expeditious inquiry and, except where the Authority's decision is the subject of the appeal, after consultation with the Authority, may make such order on any appeal noted in terms of subsection (1) or (2) as the Minister considers just.

(5) An appeal shall lie to the Administrative Court against any order of the Minister in terms of subsection (4).

(6) The Authority, the Chief executive officer or the licensing officer, as the case may be, shall take all necessary steps to comply with any order made by the Minister in terms of subsection (4) or by the Administrative Court on an appeal in terms of subsection (5).

(7) Where an appeal has been noted in terms of subsection (1) or (2) against—

(a) the cancellation of any registration or licence, the decision of the Authority, the Chief executive officer or the licensing officer concerned, as the case may be, shall be suspended until the appeal has been finally determined; or

(b) a refusal to renew any registration or licence, the Minister may direct that the registration be temporarily renewed or that the licence be temporarily extended, as the case may be, until the appeal has been finally determined.

43 Designated officers

(1) The Minister may designate any employee of the Authority and any licensing officer as a designated officer for the purposes of this Act.

(2) The Minister shall cause every designated officer to be provided with a certificate stating that he or she has been designated as such in terms of this Act.

44 Powers of Chief Executive Officer, licensing officers and designated officers

(1) The Chief Executive Officer, a licensing officer or a designated officer may, acting in good faith and without gross negligence, whenever it is reasonably necessary for the maintenance of standards in or at any designated tourist facility or otherwise for the enforcement of this Act—

(a) at all reasonable times, enter the premises of—

(i) any designated tourist facility—

A. in respect of which an application for registration has been made; or

B. in or on which any person who has applied for a licence carries on business or is employed; or

(ii) any registered tourist facility;

and, after having informed the person who is for the time being in charge or control of such premises of the purpose of his or her visit, make such examination and inquiry as he or she may consider necessary:

Provided that he may not enter any room that is occupied by any person without that person's permission;

(b) while he or she is in or on any premises referred to in paragraph (a) or at any other reasonable time, question any person who conducts or operates or intends to conduct or operate a designated tourist facility or any agent or employee of such person and require any such person, agent or employee to produce any book, notice, record, list or other document which is or has been upon or in the premises or in the possession or custody or under the control of such person, agent or employee if, in his or her opinion, it is necessary to examine that book, notice, record, list or document for the purpose of any investigation which he or she is carrying out;

(c) at any reasonable time, require any person who has the possession, custody or control of any book, notice, record, list or other document relating to a designated tourist facility or to any business con-ducted therein, to produce that book, notice, record, list or document if, in his or her opinion, it is necessary to examine that book, notice, record, list or document for the purpose of any investigation which he is carrying out;

(d) examine and make extracts from and copies of any book, notice, record, list or document referred to in paragraph (b) or (c) and require an explanation of any entry therein and seize any such book, record, list or document if he has reasonable grounds for believing that it may afford evidence of an offence under this Act.

(2) Any person who conducts or operates or intends to conduct or operate a designated tourist facility the premises of which have been entered by the Chief Executive Officer, a licensing officer or a designated officer, and any agent or employee of such a person, shall furnish such reasonable facilities as the Chief Executive Officer, the licensing officer or the designated officer, as the case may be, may require for the purpose of exercising his or her powers under this section.

(3) If any person, without just cause—

(a) refuses to permit the Chief Executive Officer, a licensing officer or a designated officer to enter any premises in terms of subsection (1) or to conduct any examination or inquiry in terms of that subsection; or

(b) fails or refuses to produce any book, notice, record, list or other document which the Chief Executive Officer, a licensing officer or a designated officer has required him or her to produce in terms of subsection (1); or

(c) fails or refuses to explain any entry in a book, notice, record, list or other document which the Chief Executive Officer, a licensing officer or a designated officer has required him or her to explain in terms of subsection (1); or

(d) fails or refuses to furnish the Chief Executive Officer, a licensing officer or a designated officer with reasonable facilities for the exercise of his or her powers as required by subsection (2); or

(e) hinders or obstructs the Chief Executive Officer, a licensing officer or a designated officer in the exercise of his or her powers in terms of subsection (1);

such refusal, failure, hindering or obstruction, as the case may be, shall afford a ground for refusing to register the designated tourist facility concerned or cancelling its registration, or refusing to issue a licence to that person or cancelling his or her licence, as the case may be.

(4) A designated officer shall, on demand by any person affected by the exercise or performance of any function in terms of this Act, exhibit the certificate issued to him or her in terms of section 43(2).

45 Secrecy to be observed

(1) The Chief Executive Officer and every licensing officer or designated officer shall not disclose to any person, except in the performance of his or her functions under this Act or when required to do so by any law or by an order of court, any information which he or she may have acquired in the course of his or her duties in relation to the financial or business affairs of any person, establishment or business.

(2) Any person who obtains any information referred to in subsection (1) from the Chief Executive Officer, a licensing officer or a designated officer shall not disclose or publish that information to any other person, unless required to do so by any law or by an order of court.

(3) Any person who contravenes subsection (1) or (2) shall be guilty of an offence and liable to a fine not exceeding level 6 or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.

46 Levies

(1) After consultation with the Minister responsible for finance and the Authority, the Minister may make regulations in terms of section 51 prescribing levies to be paid by any class of registered tourist facilities or licensed persons.

(2) In prescribing any levy in terms of subsection (1), the Minister—

(a) shall prescribe—

(i) the persons responsible for the payment, collection and remittal of the levy; and

(ii) the manner in which and the times at which the levy shall be paid and collected and remitted; and

(b) may—

(i) require any person conducting or operating a registered tourist facility to include in the price of any services rendered by him or her a surcharge at such rate as may be prescribed, and may require him or her to collect such surcharge; and

(ii) fix any other basis on which the levy shall be calculated.

(3) Any person who fails to pay the prescribed levy required to be paid in terms of subsection (1) shall be liable to a civil penalty as set forth in the Third Schedule.

(4) The Chief Executive Officer may, by proceedings in a competent court, recover the amount of any levy which is due in terms of this Act from any person required to pay the levy or to collect or remit the levy.

(5) All amounts remitted or collected by way of levy shall be paid into the Zimbabwe Tourism Fund.

47 Civil penalty orders

(1) The provisions of the Third Schedule apply to any infringement of this Act in respect of which it is provided that a civil penalty is payable.

(2) Subject to section 46(3), after consultation with the President, the Minister may by notice in a Statutory Instrument amend or replace the Third Schedule.

48 Authority shall require statistics and information

(1) The Authority shall require every operator of a tourist facility to furnish the Authority with such information and statistics regarding—

(a) tourists, excursionists; and

(b) designated tourist facilities.

(2) Any person who, when required to furnish the Authority with any information or statistics in terms of subsection (1)—

(a) fails or refuses to furnish the Authority with the information or statistics; or

(b) knowingly furnishes the Authority with any information or statistics which is false or misleading

shall be guilty of an offence and liable to a fine not exceeding level 10 or to imprisonment not exceeding a period of six months or to both such fine and such imprisonment.

49 Sustainable development principles

(1) All tourism policies, programs, and projects shall incorporate the principles of sustainable development, including environmental protection, cultural preservation, and socio-economic equity.

(2) The Authority shall ensure that sustainability considerations are mainstreamed across all tourism planning, regulation, and investment decision-making levels.

(3) Tourism operators and developers shall be required to conduct Environmental and Social Impact Assessments (ESIAs) for all major tourism developments and adhere to best practices in sustainability.

50 Mainstreaming gender equality, disability inclusion, and indigenous rights in tourism

(1) The Authority shall ensure that tourism development, regulation, and promotion are inclusive and equitable by mainstreaming—

(a) gender equality;

(b) disability inclusion; and

(c) the rights of indigenous peoples across all tourism-related policies, programs, and activities.

(2) All tourism policies and initiatives shall actively promote gender equality and women and youth empowerment, including support for women and youth led tourism enterprises.

(3) All public and private tourism facilities shall be required to comply with universal design standards and accessibility guidelines to ensure access for persons with disabilities.

(4) Tourism training institutions shall incorporate inclusive trainings to sensitise operators on disability rights and inclusive customer service.

(5) The cultural heritage, traditional knowledge, and land rights of indigenous peoples shall be respected and protected in all tourism-related activities.

(6) Prior and informed consent shall be obtained from indigenous communities before any tourism development occurs on or near their ancestral lands.

(7) Indigenous communities shall be supported in developing and managing their own tourism initiatives, with equitable benefit-sharing mechanisms and technical support provided.

51 Regulations

(1) The Minister may, after consultation with the Authority, make regulations prescribing all matters which by this Act are required or permitted to be prescribed or which, in the opinion of the Minister, are necessary or convenient to be prescribed for carrying out or giving effect to this Act.

(2) Regulations made in terms of subsection (1) may provide for—

(a) the registration of any designated tourist facility;

(b) the requirements to be complied with before any designated tourist facility may be registered;

(c) the grades of designated tourist facilities and the requirements to be complied with before a designated tourist facility can qualify for any particular grade;

(d) the licensing of any person who owns, conducts or operates a designated tourist facility, or who provides or assists in providing any service which is a designated tourist facility;

(e) the requirements to be complied with or the qualifications to be held by a person before he or she may be issued with a licence referred to in paragraph (d);

(f) the period of validity of certificates of registration;

(g) the issue of replacement licences and certificates of registration;

(h) insignia for the various groups and grades of—

(i) designated tourist facilities; and

(ii) licensed persons;

and the circumstances under which and the manner in which they shall be used or displayed;

(i) duties of licensed persons and operators of designated tourist facilities in relation to the provision of services;

(j) the publication and display of particulars relating to the nature, grade, name or style of designated tourist facilities and licensed persons;

(k) the declaration of tourist development zones for the orderly development of the tourist industry in such zones and, for that purpose, providing for the rights, privileges and obligations of persons who establish or operate or propose to establish or operate tourist facilities in such zones;

(l) particulars to be provided by persons when paying a levy;

(m) records and accounts to be kept by licensed persons and operators of designated tourist facilities;

(n) insurance to be taken out by licensed persons and operators of designated tourist facilities in respect of the death or injury of, or loss sustained by, clients and other persons;

(o) the fees and charges payable for registration certificates, licences and other documents issued, inspections carried out and other things done in terms of this Act;

(p) the provision of bonds or other security by licensed persons in respect of their operations or business;

(q) the manner in which non-resident persons who provide services in Zimbabwe relating to the tourism and hospitality industry shall receive payment for those services;

(r) the compulsory undertaking of training or instruction by persons employed in the tourism and hospitality industry;

(s) generally, any matter which, in the opinion of the Minister, is calculated to improve the services and facilities provided by the tourist industry.

(3) Regulations made in terms of subsection (1) may provide for the imposition of penalties not exceeding level 6 or imprisonment for a period not exceeding one year or both such fine and such imprisonment.

52 Offences and penalties

(1) Any person who—

(a) hinders or obstructs the Chief Executive Officer, a licensing officer or a designated officer in the exercise of his or her or her functions under this Act; or

(b) without just cause, fails or refuses to answer to the best of his or her or her ability any question which the Chief executive officer, a licensing officer or a designated officer, in the exercise of his or her functions under this Act, has put to him or her; or

(c) without just cause, fails or refuses to comply to the best of his or her ability with any requirement which the Chief Executive Officer, a licensing officer or a designated officer, in the exercise of his or her functions in terms of this Act, has made or imposed;

shall be guilty of an offence and liable to a fine not exceeding level 8 or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

(2) Any person who—

(a) publishes or causes to be published in any manner whatsoever any information relating to a designated tourist facility or licensed person, knowing such information to be false or misleading or not having reasonable grounds for believing it to be true; or

(b) falsely asserts or in any manner pretends that—

(i) he or she is the holder of a licence; or

(ii) any tourist facility is registered;

unless he or she has reasonable grounds for believing that he or she is the holder of such a licence or that the tourist facility is registered, as the case may be;

shall be guilty of an offence and liable to a fine not exceeding level 8 or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

(3) Any person who knowingly furnishes to the Authority, the Chief executive officer, a licensing officer or a designated officer any information which is false in a material respect or misleading shall be guilty of an offence and liable to a fine not exceeding level 12 or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.

53 Registers and certificates to be evidence

(1) Any register kept in terms of this Act shall be *prima facie* proof of all matters directed or authorised by this Act to be entered therein.

(2) Any document purporting to be an extract from a register kept in terms of this Act and purporting to be signed by the Chief Executive Officer shall be admissible in evidence in any proceedings in any court on its production by any person as *prima facie* proof of the matters stated therein.

(3) A certificate purporting to be signed by the Chief executive officer and stating that any premises, place, service or thing is or is not a registered tourist facility shall be admissible in evidence in any proceedings in any court on its production by any person as *prima facie* proof of the matters stated therein.

(4) A certificate purporting to be signed by a licensing officer and stating that any person is or is not licensed shall be admissible in evidence in any proceedings in any court on its production by any person as *prima facie* proof of the matters stated therein.

54 Repeal and savings

(1) Subject to this section, the Tourism Act [*Chapter 14:20*] is hereby repealed.

(2) Any regulations, by-laws or notices which, immediately before the fixed date, were in force under the Tourism Act [*Chapter 14:20*] shall continue in force as if they had been made in terms of this Act and may be amended or repealed accordingly.

(3) Any licence, certificate, authority or permit which was issued or deemed to be issued in terms of the Tourism Act [*Chapter 14:20*] which had effect immediately before the fixed date shall continue to have effect for the remainder of its period of validity as if it had been issued under this Act.

(4) Members of the Board and staff of the Authority who were in office immediately before the fixed date shall continue in office for the remainder of the period of their terms of office as if they had been appointed in terms of this Act.

FIRST SCHEDULE (*Section 5*(*3*))

POWERS OF AUTHORITY

1. To acquire premises necessary or convenient for the exercise of its functions and, for that purpose, to buy, take in exchange, hire or otherwise acquire immovable property and interests in and rights over such property.

2. To buy, take in exchange, hire or otherwise acquire movable property.

3. To maintain, alter and improve any of its property.

4. To mortgage or pledge any of its assets and, with the Minister's approval, to sell, exchange, let, dispose of, turn to account or otherwise deal with any assets which are not required for the exercise of its functions for such consideration as the Board may determine.

5. To draw, make, accept, indorse, discount, execute and issue cheques, promissory notes, bills of exchange, bills of lading, securities and other negotiable or transferable instruments.

6. To insure against losses, damages, risks and liabilities which it may incur.

7. To make contracts and enter into suretyships or give guarantees, and to modify or rescind such contracts or rescind such suretyships or guarantees.

8. With the Minister's approval—

(a) to enter into, renew, cancel or abandon arrangements with any government or authority, local or otherwise; and

(b) to obtain from such government or authority rights, privileges and concessions;

and to carry out and exercise such arrangements, rights, privileges and concessions.

9. With the approval of the Minister and the Minister responsible for finance, to establish and administer funds and reserves.

10. To employ, on such terms and conditions as the Board thinks fit, such persons as are necessary for conducting the Authority's affairs, and to suspend or discharge any such employees.

11. To pay such remuneration and allowances and grant such leave of absence and to make such gifts and bonuses and the like to its employees as the Board thinks fit.

12. To provide pecuniary benefits for its employees on their retirement, resignation, discharge or other termination of service or in the event of their sickness or injury and for their dependants, and for that purpose to effect policies of insurance, establish pension or provident funds or make such other provision as may be necessary to secure for its employees and their dependants any or all the pecuniary benefits to which this paragraph relates.

13. With the Minister's approval, to purchase, take in exchange, hire or otherwise acquire land or dwellings for use or occupation by its employees.

14. To construct buildings and other improvements for use or occupation by its employees on land which it has purchased, taken in exchange, hired or otherwise acquired.

15. To sell or let land or dwellings for residential purposes to its employees.

16. With the Minister's approval, to make or guarantee loans to its employees for—

(a) the purchase of dwellings or land for residential purposes; or

(b) the construction or improvement of dwellings on land which is the property of their employees.

17. To provide security in respect of loans such as are described in paragraph 16 by the deposit of securities, in which it may invest such moneys as the Board considers necessary for the purpose.

18. With the approval of the Minister and the Minister responsible for finance, to make loans to its employees—

(a) for the purpose of purchasing vehicles, tools or other equipment to be used by the employees in carrying out their duties; or

(b) not exceeding three months' salary or wages payable to the employees concerned, for any purpose on such security as the Board thinks adequate.

19. To do anything for the purpose of improving the skill, knowledge or usefulness of its employees, and in that connection to provide or assist other persons in providing facilities for training, education and research.

20. With the Minister's approval, to provide such services as the Board considers could properly be provided by the Authority, and to charge for such services such fees as the Board may determine from time to time.

21. With the approval of the Minister and the Minister responsible for finance, to grant such scholarships or bursaries as the Board considers to be in the interests of the whole or any part of the tourism and hospitality industry, on such terms and conditions as the Board may fix in any particular case.

22. With the Minister's approval, to engage in, establish, operate or manage schemes for—

(a) the training of persons engaged in or to be involved in any part of the tourism and hospitality industry;

(b) the development of the tourism and hospitality industry or any part of that industry.

23. Generally, to do anything that is calculated to facilitate or is incidental or conducive to the performance of its functions under this Act or any other enactment.

SECOND SCHEDULE (*Section 6*(*6*))

CONDITIONS OF BOARD

Tenure of office

1. (1) Each member, with the exception of the *ex-officio* member, shall hold and vacate office in accordance with the terms and conditions of his or her appointment.

(2) A member of the board shall hold office for such period, not exceeding four years and shall be eligible for re-appointment for only one such further term.

(3) No member shall be appointed or re-appointed to the board if he or she has already served on the board for periods, whether consecutively or not, amounting to an aggregate of eight years.

Disqualification of members

2. A person shall not qualify as a member of the board if he or she–

(a) is not a citizen of Zimbabwe or is not ordinarily resident in Zimbabwe;

(b) has in terms of any law in force in any country–

(i) been adjudged or otherwise declared bankrupt or insolvent, and has not been rehabilitated or discharged, or

(ii) made an assignment to, or arrangement or composition with, his or her creditors, which has not been rescinded or set aside; or

(c) has within a period of ten years immediately preceding the date of his or her appointment been convicted—

(i) in Zimbabwe, of a criminal offence, or

(ii) outside Zimbabwe, for an offence which, if committed in Zimbabwe, would have been a criminal offence, and sentenced by a court of competent jurisdiction to imprisonment for six months or more without the option of a fine, whether that sentence has been suspended or not, and for which he or she has not received a free pardon; or

(d) being a holder of a professional qualification who has been suspended or barred from practising the profession within or outside Zimbabwe; or

(e) is an employee of the Authority; or

(f) already a board member in any two public entities; or

(g) a member of Parliament.

Vacation of office by members

3. (1) A member shall vacate his or her office—

(a) upon the member's death; or

(b) if the member becomes disqualified, in terms of paragraphs 1 and 2, to hold office as a member; or

(c) if the member's appointment is terminated in terms of subparagraph (4); or

(d) upon giving three months written notice to the Minister of his or her intention to resign from the board.

(2) As soon as possible after a vacancy occurs in the membership of the board, the chairperson shall notify the Minister, in writing, not later than two weeks of the vacancy occurring.

(3) If a member ceases to hold office for any reason, the Minister may, within ninety days of receiving the notice under subparagraph (2) appoint another person to take the place of the member, and the person so appointed shall hold office for the remainder of the term of office of the member in whose place he or she was appointed and shall be eligible for re-appointment.

(4) The Minister may terminate the appointment of a member—

(a) if the member conducts himself or herself in a manner that is detrimental to the efficient and proper performance of the functions of the Authority; or

(b) if the member has been found to be physically or mentally incapable of performing his or her duties efficiently, and the member's medical doctor has issued a certificate to that effect; or

(c) if the member is absent from three consecutive meetings or attends less than half of the meetings of the Board without just cause.

(5) The Chief executive officer shall cease to be a member upon his or her ceasing to hold office as Chief executive officer.

Meetings and procedure of Board

4. (1) The board shall regulate its own procedure for meetings.

(2) The board shall meet at least once every quarter.

(3) A meeting of the board shall be called by the chairperson giving at least fourteen days' notice of such meeting, unless all members consent to a shorter notice period.

(4) The chairperson shall provide to each member the agenda for the meeting and any materials which support each agenda item at the time when the notice for the meeting is issued.

(5) The chairperson shall call a special meeting of the board within seven days of receipt of a request, in writing, from at least three members for such special meeting to be held.

(6) Five members shall form a quorum.

(7) At any meeting of the board, the chairperson shall preside, and in his or her absence, the vice-chairperson and in the absence of both the chairperson and the vice-chairperson, the members present shall elect from among their members, a chairperson for the purposes of that meeting.

(8) The decisions of the board shall be made by a majority of votes, and in the event of an equality of votes, the chairperson, or the vice-chairperson, or such other person presiding at the meeting, shall have a casting vote in addition to his or her deliberative vote.

(9) With the Board's approval, the chairperson of the Board may invite any person to attend a meeting of the Board or a committee, where the chairperson considers that the person has special knowledge or experience in any matter to be considered by the Board or the committee, as the case may be, at that meeting.

(10) A person invited to attend a meeting of the Board or of a committee in terms of subparagraph (9) may take part in the proceedings of the Board or the committee as if he or she were a member thereof but shall not have a vote on any question before the Board or committee, as the case may be.

(11) The Board shall cause minutes of all proceedings of, and decisions taken at every meeting of the Board and of every committee to be entered in books kept for the purpose.

(12) Any minutes referred to in subparagraph (11) which purport to be signed by the person presiding at the meeting to which the minutes relate or by the person presiding at the next following meeting of the Board or the committee concerned, as the case may be, shall be accepted for all purposes as *prima facie* evidence of the proceedings and decisions taken at the meeting concerned.

Committees of Board

5. (1) For the better exercise of its functions, the Board may establish, in line with Part VI of the Public Entities Corporate Governance Act [*Chapter 10:33*], one or more committees which the Board may vest with such of its functions as it considers appropriate:

Provided that the vesting of a function in a committee shall not prevent the Board from itself exercising that function, and the Board may amend or rescind any decision of the committee in the exercise of that function.

(2) On the establishment of a committee in terms of subsection (1), the Board—

(a) shall appoint at least one member of the Board as a member of the committee, and that member or one of those members, as the case may be, shall be chairperson of the committee; and

(b) may appoint as members of the committee, persons who are not members of the Board.

(3) The chairperson of a committee may, at any reasonable time and place, convene a meeting of that committee:

Provided that the chairperson of the Board may cause the convening of a committee meeting where the chairperson of a committee is not in a position to chair the meeting.

(4) Subject to subparagraph (3) and to paragraphs 4 and 6, the procedure to be followed at any meeting of a committee and the quorum at any such meeting shall be as fixed by the Board.

Remuneration and allowances of members of Board and committees

6. Members of the Board and of any committees shall be paid from the funds of the Authority—

(a) such remuneration as may be prescribed in terms of the Public Entities and Corporate Governance Act [*Chapter 10:33*];

(b) such allowances as the Minister responsible for corporate governance, after consultation with the Minister responsible for finance and the Minister, may fix to meet any reasonable expenses incurred by him or her in connection with the business of the Board.

Members of Board and committees to declare connection with companies and firms dealing with Authority

7. (1) In this paragraph–

"immediate family member" means parents, spouse, civil partner, child, siblings.

(2) Where a member of the Board—

(a) knowingly acquires or holds a direct or indirect pecuniary interest in any matter that is under consideration by the Board; or

(b) owns any property or has a right in property or a direct or indirect pecuniary interest in a company or association of persons which results in the member's private interests coming or appearing to come into conflict with his or her functions as a member; or

(c) knows or has reason to believe that his or her immediate family member—

(i) has acquired or holds a direct or indirect pecuniary interest in any matter that is under consideration by the Board; or

(ii) owns any property or has a right in property or a direct or indirect pecuniary interest in a company or association or persons which results in the member's private interests coming or appearing to come into conflict with his or her functions as a member; or

(d) if, for any reason, the private interests of a member of the Board come into conflict with his or her functions as a member;

the member shall disclose the fact to the Board, as the case may be.

(3) A member referred to in subparagraph (2) shall take no part in the consideration or discussion of, or vote on, any question before the Board, as the case may be, which relates to any property, right or interest referred to in that subparagraph.

(4) Any person who contravenes subparagraphs (2) and (3) shall be guilty of an offence and liable to a fine not exceeding level six or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.

THIRD SCHEDULE (*Sections 46(3), 47*)

CIVIL PENALTY ORDERS

ARRANGEMENT OF PARAGRAPHS

Paragraph

1. Interpretation in Schedule.
2. Power of Authority to issue civil penalty orders.
3. Specific civil infringements.
4. Limitation on issuance and enforcement of civil penalty orders.
5. Service and enforcement of civil penalties and destination of proceeds thereof.
6. When hearings on question whether to serve civil penalty orders may be held.
7. Evidentiary provisions in connection with civil penalty orders.
8. Designated officers.

Interpretation in Schedule

1. In this Schedule, unless the context otherwise requires—

"citation clause", in relation to a civil penalty order, is the part of the order in which the authority names the defaulter and cites the provision of this Act in respect of which the default was made or is alleged, together with (if necessary) a brief statement of the facts constituting the default;

"civil penalty register" means the register referred to in paragraph 7 ("Evidentiary provisions in connection with civil penalty orders");

"corporate defaulter" means a defaulter which is a company, syndicate or other corporate person (and includes a partnership for the purpose of paragraph 4(3) and (6));

"date of issuance", in relation to the service of a civil penalty order, means the date on which it is served in any of the ways specified in paragraph 4(1);

"defaulter" means the person on account of whose default a civil penalty order is served, and includes an alleged defaulter;

"penalty clause", in relation to a civil penalty order, is the part of the order that fixes the penalty to be paid by the defaulter, and "fixed penalty clause" and "cumulative penalty clause" shall be construed accordingly;

"remediation clause", in relation to a civil penalty order, is the part of the order that stipulates the remedial action to be taken by the defaulter;

"show cause clause", in relation to a civil penalty order is the part of the order that requires the defaulter to show cause why the civil penalty order should not have been served or should be withdrawn.

Power of Authority to issue civil penalty orders

2. Where default is made in complying with any provision of this Act or of regulations or orders made under this Act for which a civil penalty is specified in this Schedule to be leviable, the Authority may, in addition to, and without derogating from, any criminal or non-criminal penalty that may be imposed by this Act or any other law for the conduct constituting the default, serve upon the defaulter a civil penalty order of the appropriate description specified in this paragraph.

Specific civil infringements

3. (1) A natural or legal authorised person shall be guilty of a civil infringement if he or she fails to pay the prescribed levy, contrary to section 46.

(2) In the event of default in complying with subparagraph (1), the civil penalty shall provide for—

(a) a combination of—

(i) a fixed penalty of twice the levy that person would have paid had such person paid the levy timeously; and

(ii) a cumulative penalty over a period not exceeding ninety days of five *per centum* of the outstanding amount of the fixed penalty for each day (beginning on the day after the service of a civil penalty order) that the fixed penalty or any outstanding amount thereof remains unpaid by the defaulter;

(b) the suspension of the operation of the civil penalty order for a period of forty-eight hours from the date of its issuance to enable the alleged defaulter to show cause to the designated officer why the order should not have been issued, that is to say, to show that the order was issued in error:

Provided that—

(i) if no such cause is shown within that period the order shall be deemed to have been issued with effect from the beginning of such period; or

(ii) if within that period it is shown that the order was issued in error the designated officer shall withdraw the order and make the appropriate notation of withdrawal in the civil penalty register.

Limitation on issuance and enforcement of civil penalty orders

4. (1) No civil penalty order may be issued more than twenty-four months from the date when the default or alleged default occurred or ceased to occur.

(2) A single civil penalty order may (in terms of paragraph 5(4)) be served in respect of two or more defaults committed by the defaulter within a single period not exceeding six months, but if the aggregate of such defaults results in the defaulter becoming liable (either immediately or within seven days from the service of the civil penalty order) to a penalty or combined penalties in excess of the equivalent to more than twice the highest monetary penalty for which that person is liable in respect of any of those civil defaults, the Authority may select one or any combination of those defaults which will not result in the defaulter becoming so liable, while reserving the right to serve a second or further additional civil penalty orders in respect of the defaults not so selected if the defaulter does not comply with the first civil penalty order.

Service and enforcement of civil penalties and destination of proceeds thereof

5. (1) References to the designated officer serving upon a defaulter any civil penalty order in terms of this Schedule, are to be interpreted as requiring the designated officer to serve such order in writing to the defaulter concerned—

(a) by hand delivery to the defaulter or his or her director, manager, secretary or accounting officer in person, or to a responsible individual at the place of business of the defaulter; or

(b) by delivery through a commercial courier service to the defaulter's place of business or his or her principal office in Zimbabwe or other place of business of the defaulter; or

(c) by electronic mail to the defaulter whose electronic mail address is known to the designated officer.

(2) The designated officer shall not extend the period specified in a civil penalty order for compliance therewith except upon good cause shown to him or her by the defaulter, and any extension of time so granted and the reasons therefor (not exceeding in any case thirty days) shall be noted by the designated officer in the civil penalty register.

(3) The designated officer may, if the defaulter is a corporate defaulter—

(a) in the same civil penalty order, name the corporate defaulter and every officer of the company, syndicate, other corporate person or partnership concerned as being so liable separately, or issue separate civil penalty orders in respect of the defaulter and each of the officers concerned; or

(b) choose to serve the order only upon the corporate defaulter without naming the officers if, in his or her opinion (which opinion the designated officer shall note in the civil penalty register), there may be a substantial dispute of fact about the identity of the particular officer or officers who may be in default:

Provided that nothing in this subparagraph affects the default liability of officers of the defaulter mentioned in subparagraph (6).

(4) Subject to paragraph 4(2), the designated officer may, in the citation clause of a single civil penalty order, cite two or more defaults relating to different provisions of this Schedule if the defaults in question—

(a) occurred concurrently or within a period not exceeding six months from the first default or defaults to the last default or defaults; or

(b) arose in connection with the same set of facts.

(5) Where in this Act the same acts or omissions are liable to both criminal and civil penalty proceedings, the designated officer may serve a civil penalty order at any time before the commencement of the criminal proceedings in relation to that default, that is to say at any time before—

(a) summons is issued to the accused person for the prosecution of the offence; or

(b) a statement of the charge is lodged with the clerk of the magistrate's court before which the accused is to be tried, where the offence is to be tried summarily; or

(c) an indictment has been served upon the accused person, where the person is to be tried before the High Court;

as the case may be, but may not serve any civil penalty order after the commencement of the criminal proceedings until after those proceedings are concluded (the criminal proceedings are deemed for this purpose to be concluded if they result in a conviction or acquittal, even if they are appealed or taken on review), (For the avoidance of doubt it is declared that the acquittal of an alleged defaulter in criminal proceedings does not excuse the defaulter from liability for civil penalty proceedings).

(6) Every officer of a corporate defaulter mentioned in the civil penalty order by name or by office, is deemed to be in default and any one of them can, on the basis

of joint and several liability, be made by the designated officer to pay the civil penalty in the event that the corporate defaulter does not pay.

(7) Upon the expiry of the ninety-day period within which any civil penalty order of any category must be paid or complied with, the defaulter shall be guilty of an offence and liable to a fine not exceeding level six or to imprisonment for a period not exceeding one year or to both (in the case of a corporate defaulter, every one of its officers is liable to the penalty of imprisonment, and to the fine if the corporate defaulter fails to pay it).

(8) The amount of any civil penalty shall—

(a) be payable in the manner directed by the designated officer in the civil penalty order and shall form part of the funds of the Authority; and

(b) be a debt due to the Authority and shall be sued for in any proceedings in the name of the Authority in any court of competent civil jurisdiction:

Provided that for this purpose, the court of the magistrate in the district where the defaulter has his or her principal place of business shall be deemed to have jurisdiction to hear the suit even if the monetary amount sought would otherwise exceed its prescribed jurisdiction.

(9) Proceedings in a court for the recovery of a civil penalty shall be deemed to be proceedings for the recovery of a debt as if the defaulter had acknowledged the debt in writing.

(10) If the designated officer in terms of subparagraph (8)(b) desires to institute proceedings to recover the amounts of two or more civil penalties in any court of competent civil jurisdiction, the designated officer may, after notice to all interested parties, bring a single action in relation to the recovery of those penalties if the orders relating to those penalties—

(a) were all served within the period of twelve months preceding the institution of the proceedings; and

(b) were served—

(i) on the same defaulter; or

(ii) in relation to the same default or set of defaults, whether committed by the same defaulter or different defaulters; or

(iii) on two or more defaulters whose registered offices are in the same area of jurisdiction of the court before which the proceedings are instituted.

(11) Unless the designated officer has earlier recovered in civil court the amount outstanding under a civil penalty order, a court convicting a person of an offence against subparagraph (7), may on its own motion or on the application of the prosecutor and in addition to any penalty which it may impose, give summary judgement in favour of the designated officer for the amount of any outstanding civil penalty due from the convicted defaulter.

When hearings on question whether to serve civil penalty orders may be held

6. (1) If, in response to a show cause clause, an alleged defaulter satisfies the designated officer, that it is not possible within forty-eight hours to demonstrate that the civil penalty order was issued in error, the designated officer shall afford the alleged defaulter an opportunity to be heard by making oral representations to the designated officer, for which purpose—

(a) no later than ninety-six hours after the issuance of the civil penalty order, the alleged defaulter must furnish to the designated officer an affidavit sworn by him or her giving reasons to show that the civil penalty order was issued in error:

Provided that the designated officer shall not entertain ignorance of the law or any alleged impossibility of compliance with it as grounds for withdrawing a civil penalty order;

(b) within a reasonable period from the receipt of an affidavit referred to in paragraph (a) the designated officer may serve copies of the affidavit on any person who, in the designated officer's opinion, is affected by or may be a party to the default, together with an invitation to the parties to attend at a meeting to be presided over by the designated officer (giving particulars of its time and venue) to enable the parties to make oral and written representations at that meeting on the question whether the civil penalty order was issued in error to the alleged defaulter and whether it should be issued to some other person or not issued at all:

Provided that in such invitation or at the meeting, the designated officer may restrict the parties to submitting written representations only, before or no later than forty-eight hours after the conclusion of the meeting.

(2) The following provisions apply to every meeting convened under this paragraph in connection with the issuance of a civil penalty order—

(a) if the alleged defaulter fails to attend at the meeting, the designated officer may proceed to issue the civil penalty order;

(b) the alleged defaulter bears the burden of showing on a balance of probabilities that the civil penalty order was issued in error;

(c) at the conclusion of the meeting, the designated officer may, in the presence of the parties (if any) at the meeting, verbally—

(i) confirm that the civil penalty order was properly issued and is to have effect from—

A. the date on which it was initially issued if the designated officer finds that the defaulter's objections to its issuance were baseless, vexatious or frivolous; or

B. in any other case, post-date the date of commencement of the civil penalty order to the date of his or her decision; or

(ii) cancel the civil penalty order; or

(iii) re-issue the civil penalty order to the same or another defaulter and on the same or different terms with effect from the date of his or her decision;

and, in the case of subparagraph (i) or (iii), may extend the period specified in a civil penalty order for compliance therewith by a further specified period:

Provided that the designated officer may defer making a decision by no more than forty-eight hours after the conclusion of the meeting and give notice of his or her decision, and the reasons for it (together with the civil penalty order, if any), to the alleged defaulter or any other person found to be liable for the civil penalty.

Evidentiary provisions in connection with civil penalty orders

7. (1) For the purposes of this Schedule, the designated officer shall keep a civil penalty register wherein shall be recorded—

(a) the date of service of every civil penalty order, the name and the physical or registered office address of the person upon whom it was served, the civil penalty provision in relation to which the defaulter was in default, and the date on which the civil penalty order was complied with or the penalty thereunder was recovered as the case may be;

(b) if the alleged defaulter responded to the show cause clause in the civil penalty order with the result that—

(i) the order was cancelled because it was issued in error, the fact and the date of such cancellation; or

(ii) a meeting was held in accordance with paragraph 6, then—

A. a record or an adequate summary of any representations made at the meeting by way of an entry or cross-reference in, or annexure to, the register (and if recorded by way of annexure or cross-reference, the representations must be preserved for a period of at least six years from the date when they were made to the designated officer);

B. a record of the outcome of the meeting, that is to say, whether or not the civil penalty order was cancelled, and if not the date from which it was to have effect and whether a different defaulter was served with it.

(2) A copy of—

(a) any entry in the civil penalty register, and of any annexure thereto or record cross-referenced therein, authenticated by the designated officer as a true copy of the original, shall on its mere production in any civil or criminal proceedings by any person, be *prima facie* proof of the contents therein; or

(b) any civil penalty order that has been served in terms of this Act, authenticated by the designated officer as a true copy of the original, shall on its mere production in any civil or criminal proceedings by any person, be *prima facie* proof of the service of the order on the date stated therein upon the defaulter named therein, and of the contents of the order.

Designated officers

8. (1) Any reference to the Authority in this Schedule shall be construed as a reference to a designated officer.

(2) The Chief Executive Officer shall furnish each designated officer with a certificate signed by or on behalf of the Minister stating that he or she has been appointed as a designated officer for the purpose of this Schedule.

(3) A designated officer shall, on demand by any person affected by the exercise of the powers conferred upon the Authority under this Schedule, exhibit the certificate issued to him or her in terms of subparagraph (2).